

Public Art In-Lieu Fee - Fund 207

The Public Art In-Lieu Fee, adopted by the City Council on September 14, 2000, through Ordinance No. 1372, reflects the City's commitment to enhancing its cultural and aesthetic landscape. The program dates to 1990, when the City established the Visual Arts in Public Places Program, which required 1% of City-funded capital projects to be dedicated to public art. In 2000, this initiative was expanded to include private development, requiring non-residential projects with construction costs exceeding \$100,000 to contribute public art valued at 0.5% of the total cost or pay an in-lieu fee to the City's public art fund. The program offers developers flexibility, allowing them to either incorporate art into their projects or contribute to the broader public art fund. This voluntary approach helps ensure that public art continues to enrich the City's cultural landscape by enhancing both private developments and public spaces. Governed under Municipal Code 17.70.140, the Public Art In-Lieu Fee plays a vital role in promoting the City's artistic and cultural goals, helping to create a more vibrant and engaging environment for residents and visitors alike.

As of June 30, 2024, the fund balance available for expenditures was \$1,526,587.79. Expenditures from fund balance totaled \$190,647.40 in FY 2023-24, refer to Exhibit A and Exhibit B for details of projects which are being funded with this fee. As of June 30, 2024, there were no funds that had been held more than five years.

207 - Public Art In-Lieu Fee Fund	FY 19-20	FY 20-21	FY 21-22	FY 22-23	FY 23-24
Fund Balance Beginning of Year	\$ 620,934.19	\$ 591,096.94	\$ 568,401.48	\$ 798,038.30	\$ 1,269,844.49
Interest	\$ 17,813.41	\$ 143.88	\$ (16,319.37)	\$ 16,742.18	\$ 63,177.70
Transfers In	\$ -	\$ -	\$ 442,500.00	\$ 442,500.00	\$ 425,000.00
In-Lieu Fees	\$ 18,673.00	\$ (1,357.13)	\$ 99,698.00	\$ 220,854.00	\$ 49,763.00
Total Revenue	\$ 36,486.41	\$ (1,213.25)	\$ 525,878.63	\$ 680,096.18	\$ 537,940.70
Expenses	\$ 66,323.66	\$ 21,482.21	\$ 296,241.81	\$ 208,289.99	\$ 190,647.40
Transfers Out	\$ -	\$ -	\$ -	\$ -	\$ 90,550.00
Total Expenditures	\$ 66,323.66	\$ 21,482.21	\$ 296,241.81	\$ 208,289.99	\$ 281,197.40
Fund Balance End of Year	\$ 591,096.94	\$ 568,401.48	\$ 798,038.30	\$ 1,269,844.49	\$ 1,526,587.79
<i>Less Loans Receivable</i>	<i>\$ -</i>	<i>\$ -</i>	<i>\$ -</i>	<i>\$ -</i>	<i>\$ -</i>
Net Fund Balance End of Year	\$ 591,096.94	\$ 568,401.48	\$ 798,038.30	\$ 1,269,844.49	\$ 1,526,587.79

Five Year Revenue Analysis

Net Fund Ending Balance (6/30/24)	\$ 1,526,587.79
Less: Revenues for last five years:	
Revenues FY 19-20	\$ 36,486.41
Revenues FY 20-21	\$ (1,213.25)
Revenues FY 21-22	\$ 525,878.63
Revenues FY 22-23	\$ 680,096.18
Revenues FY 23-24	\$ 537,940.70
Total Revenues for last five years	\$ 1,779,188.67
Funds Held in Excess of Five Years	\$ (252,600.88) if positive, then subject to findings

Notes

N/A